



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

NOV 19 1990

DOT-E 10506

1. Olin Chemicals, Brandenburg, Kentucky, is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a flammable gas residue for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one-time shipment of liquefied petroleum gas residue in three DOT Specification 112J340W tank car tanks with derailment-damaged coupler restraint systems, thermal protection systems, and tank head puncture resistance systems, and provides no relief from any regulations other than as specifically stated.

2. BASIS. This emergency exemption is based on Olin Chemicals' application of November 12, 1990, submitted in accordance with 49 CFR 107.113, and a determination that it is necessary for protection of life and property.

3. HAZARDOUS MATERIALS (Descriptor and class). Liquefied petroleum gas, classed as a flammable gas.

4. PROPER SHIPPING NAME (49 CFR 172.101). Liquefied petroleum gas.

5. REGULATION AFFECTED. 49 CFR 173.29(c)(2), 179.14, 179.105-4, and 179.105-5.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed are DOT Specification 112J340W tank car tanks, (Serial numbers UTLX 81433, UTLX 8821, and UTLX 88467), with damaged coupler restraint systems, thermal protection systems, and tank head puncture resistance systems. No tank shell damage is apparent.

b. Tank car tanks will move in a special train, accompanied by personnel that will monitor the integrity of the cars.

8. SPECIAL PROVISIONS.

- a. Shipment must be between Olin Chemicals, Doe Run, Kentucky, and Derby Tank Car Repair, Ekron, Kentucky, a distance of approximately 8 miles, using the most direct route available via CSX.
- b. The tank cars must be marked "DOT-E 10506" above the DOT specification number in letters at least four inch high on a contrasting background.
- c. The Federal Railroad Administration is to be notified if any unusual incident, such as a derailment or exterior tank damage, occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

9. REPORTING REQUIREMENTS: Any incident involving loss of packaging contents or packaging failure must be reporting to the Associate Administrator for Hazardous Materials Safety as soon as practicable.

10. EXPIRATION DATE. January 31, 1991 or upon completion of one shipment, whichever occurs first.

Issued at Washington, D.C.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

NOV 19 1990
(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Branch.

Dist: FRA.